

Line 2

Case Name: *Wells Fargo Bank, N.A. v. John S. Campbell*

Case No.: 24CV449202

See Order above. (As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR).

Line 3

Case Name: *Capital One, N.A. v. Sarahi Gomez*

Case No.: 25CV459110

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Capital One, N.A. (“Plaintiff”) moves under Code of Civil Procedure Section 438 for entry of Judgment on the Pleadings per the Complaint in the amount set forth in the Complaint plus costs in favor of Plaintiff and against Defendant Sarahi Gomez (“Defendant”) on the ground that the Complaint states facts sufficient to constitute a cause of action and the Answer does not state facts sufficient to constitute any defense. Notice of Motion (the “Motion”) at 1:23-28 (filed: March 2, 2026).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On February 18, 2025, Plaintiff filed a Complaint with a cause of action for breach of contract against Defendant for damages in the amount of \$4,161.56. Complaint at ¶¶ 8-10 (filed Feb. 18, 2025). Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant.

Defendant filed an Answer on March 21, 2025, which does not deny any allegation or claim in the Complaint. Answer (filed March 31, 2025). Having reviewed the Answer, the Court finds that it *does not* state facts sufficient to constitute any defense to the Complaint.

Code of Civil Procedure Section 438(a) authorizes a Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, “the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” C.C.P. § 438(a).

Here, as the Court has found that (1) the Complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant for damages in the amount of \$4,161.56, and (2) Defendant’s Answer does *not* state facts sufficient to constitute any defense to the Complaint, Plaintiff’s Motion under Section 438(a) is **GRANTED**.

More specifically, as the Court reads Defendant’s Answer to admit that she owes the debt claimed by the Complaint, there is no reasonable possibility that this defective pleading (that fails to state facts sufficient to constitute any defense) could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND**.